Md. Kamruzzaman FCA

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Career History

1. Pendekar Energy (L) Limited (Subsidiary of Powertek Energy Sdn Bhd, which is the holding of China General Nuclear Power Corporation ("CGNPC") and Aljomaih Automotive Company Limited)

IDB Bhaban E/8-A, Rokeya Sharani, Dhaka - 1207.

Manager Taxation, Compliance and Accounts (Head of the Function) 20 June 2017 to Present

2. Rahman Rahman Huq (KPMG Bangladesh)
9 & 5 Mohakhali C/A, Dhaka- 1212.

Assistant Manager – October-2013 to 19 June 2017

3. Howladar Yunus & Co
House-14 (Level 4 & 5), Road-16A, Gulshan-1 Dhaka-1212
Senior Assistant Manager – June 2013 to September 2013

4. ACNABIN Chartered Accountants
BDBL Bhaban (Level-13 & 15) 12 Kawran Bazar Commercial Area, Dhaka-1215
Assistant Manager – November 2008 to May 2013

Background

I have more than 17 years of experience, with over 8 years at Pendekar Energy (L) Limited and 9 years in the top three listed accountancy firms in Bangladesh. Currently, I am working as a Manager of Taxation, Compliance, and Accounts (Head of the Function) at Pendekar Bangladesh Limited, where I am responsible for dealing with accounting, auditing, taxation, advisory, reporting, financial management, and regular tax and VAT compliances for the company. I also support five separate business entities in relation to these matters. Additionally, I assist consultants in facing several regulatory audits (e.g., Statutory Audits, tax audits, CIC VAT audit, CAG Audit). I also maintain liaison with the stakeholders of the company for smooth business operations in connection with taxation and other matters.

Previously, I worked at KPMG Bangladesh as an Assistant Manager in the tax and advisory services department. At KPMG, I provided various services, including a full range of accounting support such as management accounting, payroll, regulatory and secretarial compliance, corporate tax, and VAT matters. However, during my tenure at KPMG, my major focus was on the overall process of corporate taxation, both direct and indirect, from obtaining TIN to regular compliances that need to be maintained on a timely basis for both reputed local and multinational companies.

Furthermore, I advised clients on tax structuring and other regulatory implications for different types of business entities, tax implications on business transaction models, EPC contracts, carve-outs, transfers of business, etc., under the close supervision of **Mr. Adeeb H. Khan**, Senior Partner of KPMG Bangladesh, and direct supervision of **Mr. Ashraf Zaman Ali**, Partner of KPMG Bangladesh. Besides, I have extensive expertise in managing clients and providing various background support, such as vendor management, computation of tax and VAT to be deducted from vendors' invoices, and conducting scheduled meetings with clients' vendors.

I have completed my professional degree in association with ICAB and my CA course from ACNABIN Chartered Accountants (a member firm of Baker Tilly International). I also hold a postgraduate degree from Dhaka University in Applied Mathematics.

Outside of work, I am a social and environmental awareness creator. I enjoy exploring new places and meeting new people, which allows me to forge long-term relationships. This explains my excellent communication and adaptability skills as well as my confidence

Professional Achievements

- Proficiently worked in implementation of the internal tax-technology in Pendekar within a shorter period to involve no-human effort in recording tax documents.
- Received Excellent Financial Staff Award for the year 2024 (out of 6 people) within the total CGNEI Financial staff under CGN Energy International Holdings Co. Limited.
- Received Outstanding Employee Award for the year 2021 (out of 4 people) within the group employee of Edra *Power Holdings Sdn Bhd* (“CGN Edra”)
- Under his utmost supervision Megnaghat Power Limited (MPL) has been awarded with “Tax Card” from National Board of Revenue (NBR) for the Assessment Year 2021-22 which is the highest recognition in Bangladesh given to a taxpayer by NBR. This recognition is a true testament to the company’s compliance strength.

Skills and Competencies

- Proficient in MS Office, Excel (using shortcuts and formula functions such as **SUMIF, COUNTIF, VLOOKUP, Utilizing pivot tables,** etc), PowerPoint.
- Great communicator (written): set the tone depending on the recipient's background, and culture and convey information in a concise manner – communicated to numerous parties from different countries
- Solid communicator (oral): understand non-verbal expressions, the importance of greetings, and listening closely before speaking
- Ownership taker: eager to take ownership of tasks with an "I've got this" attitude – independently managed clients after line manager left with a short notice
- Highly adaptable: embrace change instead of averting from it, meet people from different backgrounds
- Persuasive: ability to persuade others by gaining trust through confidence and building relationships
- Languages: English – Moderately fluent

  Bangla – Native speaker

Representative Clients in KPMG

- **Audit, Accounting, payroll, withholding tax & VAT, and secretarial service –**
  - CEAT AKKHAN Limited
  - Summit Power Limited
  - L M Ericsson Bangladesh
  - BBC Bangladesh Limited
  - Gap Inc.
  - Sainsbury's Asia
  - Siemens AG
  - Proctor and Gamble
  - Intercontinental Dhaka

- Obtained favourable assessment against tax authority (VAT authority) demand for HPL & KNPS which trigger additional cash tax savings for the respective companies amounting **BDT 85m**
- Assisting to obtain favourable assessment from High court regarding aged old tax litigation (Income year 2005-2013 for MPL, HPL & NEPC) where tax saving **BDT 1,837 million.**
- Obtained favourable assessment through appeal before Commissioner of Taxes (Appeals) to obtain favourable assessment (Income year 2016 to 2019 for HPL & NEPC) where approx. **BDT 1821 million**
- Profoundly involved in the tax assessment process in LTU of a large multinational company and successfully managed to get benefit of **BDT 780 million** through ADR.
- Efficiently managed the whole corporate tax and VAT and secretarial compliances for multinational clients in industries; power, e-commerce, clothing, chemical, telecommunication, banking, ITES etc., attaining comprehensive understanding of the overall process.
- Directly involved in companies' corporate tax assessments and get several assessments completed with the judgments in the favour of the assessee where the law is not explicitly explained, or sufficient explanations are not available
- Independently managed more than **15 clients** by communicating with client's management at the very top level through email, telephone, and face-to-face meetings.
- Successfully acquired more than **5 clients** by actively involved in tailoring proposals negotiating fees signing engagement the letter, contributing the firm to its growth.
- Competently advised on preparation of supporting documents to face tax audits, appeals and, tribunals, ADR which saved clients from being assessed unfairly.

Key Professional Experiences

Pendekar Energy (L) Limited (June 2017 to Present)

- Managing the processes for financial forecasting and budgets, working capital management, and overseeing the preparation of all financial reporting
- Providing leadership to the executive team, as well as company-wide
- Overseeing the day-to-day operation of the organization within the regulation such as IFRS, IAS, Companies law, Tax and VAT law etc.
- Dealing Budgetary cost management and cost saving governance
- Working on Capital investment – evaluation and governance
- Meeting with and reporting to the board of directors; creating strong working relationships with them
- Maintaining regular compliances of accounting, direct and indirect tax and Customs, Transfer Pricing operation and litigation on a timely manner along with stakeholder management
- Preparing application for the approval of TKH fees agreement as well as TKH fees amount from BIDA and assist the company to collect the approval and remit the money to the service provider.

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- **Corporate tax and review of annual tax provision -**
  - Banglalink Digital Communications Ltd.
  - Grameenphone Limited
  - Standard Chartered Bank
  - HSBC
  - Haripur Power Limited
  - Meghnaghat Power Limited
  - NEPC Consortium Power Limited
  - KN Power Services Limited
  - Cathay Pacific Airways Limited
  - Clarke Energy Bangladesh Ltd.
  - Siemens Bangladesh Limited
  - Siemens Limited, India
  - Wartsila Bangladesh Limited
  - Karnaphuli Fertilizer Company Limited
- **Tax and regulatory advisory –**
  - Sanofi Bangladesh Limited
  - Banglalink Digital Communications Ltd.
  - HSBC
  - Summit Power Limited
  - L M Ericsson Bangladesh
  - BBC Bangladesh Limited
  - Gap Inc.
  - Sainsbury's Asia
  - Siemens AG
  - Proctor and Gamble
- **Tax audits and litigations –**
  - HSBC
  - Bharat Heavy Electricals Limited
  - Haripur Power Limited
  - NEPC Consortium Power Limited
  - KN Power Services Limited
  - Siemens Bangladesh Limited
  - Clarke Energy Bangladesh Ltd.

Professional Qualification

- Chartered Accountant-The Institute of Chartered Accountants of Bangladesh (ICAB),

Education and achievements

- MSC in Applied Mathematics, Dhaka University, 2005
- BSC in Mathematics, DhakaUniversity, 2004

- Dealing Treasury management function such as handling with regulatory issues with Bangladesh Bank and our bank, finalization of the trade facility agreement, maintenance of bank signatory, etc.
- Clearing foreign remittance, such as dealing with LC issues including export cum import LC, clearance of service payment through TT, etc.
- Assisting in designing and implementing internal control policies such as Petty Cash Policy, Group Treasury Policy, Group Accounting Policy etc.
- Ensuring relevant accounting entries to be booked in system regarding tax and VAT (e.g., booking provision, adjustment of AIT, and VAT deducted by customers).
- Assisting consultants in facing tax and VAT audits (currently dealing with tax audits for 4 years and VAT audit for 3 years (3 companies)
- Computation of total taxable income and deferred tax, and assisting consultant in preparing income tax return and submit the same.
- Preparation and submission of monthly VAT returns and preparing monthly reconciliation of revenue reported in VAT returns and revenue recognized.
- Providing strategic recommendations (analysis of tax system and advise on regulatory (tax) matter current or new investments, Tax planning, elimination of tax obstacles to all forms of cross-border economic activity etc.) to the Global CFO and other members of the senior management team.
- Reconciliation of current and deferred tax provision to ensure that temporary difference and permanent difference has been consider calculating the deferred and current tax provision respectively.
- Liaising with stakeholders including government entities (NBR, Bangladesh Bank, BPDB, Titas and BIDA etc.) for Tax exemption, Tax incentives, Interpretation of some of provisions of the Act and Rules, cross-border transaction with its tax implications, permission, and repatriation of Royalty/ Technical Know How, revenue collection etc.

Rahman Rahman Huq–KPMG Bangladesh (October 2013 to June 2017)

Corporate & Personal tax

- Compute total taxable income and tax liability followed by preparation and filing of income tax return along with necessary schedules for e-commerce, power, telecommunications, technology, clothing, and chemical companies.
- Compute total income and tax liability of foreign employees (expatriate) as per Income Tax Ordinance and Rules 1984.

Tax Litigation

- Preparing grounds of appeal and written arguments for filing appeal before Commissioner of taxes and taxes appellate tribunal.
- Collection of companies' tax clearance certificates, assessment orders, demand notice, and computation sheet in support of the assessment.

  Preparing written arguments on the grounds of the ADR process before facilitators at the Alternative Dispute Resolution (ADR) level for indirect tax purposes.

Advisory Services

- Advising on taxation, secretarial, and other regulatory issues related to available investment options for setting up of permanent establishment of foreign companies in Bangladesh.
- Advice on transaction structuring to mobile operator against its planning to monetize its passive infrastructure ("PI") by carving out the tower-related assets to a newly incorporated Tower Company.
- Advise forming an efficient salary structure minimizing tax the impact on both employees and employer.
- Advise on tax and VAT implications for indirect change in ownership (restructuring) of a well-known Bangladeshi mobile operator.
- Advise several multinational clients of various industries (i.e., telco, Banks, Power etc.) on a retainer basis for any VAT and tax matters that need to be addressed to do regular businesses.
- Obtained several Tax exemption, Tax incentives, interpretation of laws on Act and Rules including SROs any dispute raised.

VAT compliance

- Obtained VAT registration and prepared and submitted monthly VAT returns different level of companies.
- Prepared output VAT payment schedule, rebate schedule, prepared treasury challans, maintain all related VAT books etc
- Competently advised on implication of VAT on Technical Know-how fees and other foreign remittances for large multinationals
- Obtained certificate for claiming reduced custom duties at importation stage
- Advised on VAT mechanism of contract and sub-contract business under both new and earlier VAT Acts.

Withholding tax and VAT compliance

- Advise time to time on various ambiguous issues relating to withholding tax and VAT (contractors, suppliers, services, office rent, and others) and depositing the same to government treasury.
- Successfully obtained NBR certificate for reduced rate/exemption of withholding tax while paying to non-resident u/s 56 of the ITO 1984.
- Successfully obtained certificates from NBR for exemption of withholding taxes for ITES companies
- Prepare and file half-yearly withholding tax returns under section 75A of the ITO 1984.
- Successfully managed NBR audit on VAT issues by reconciling withholding VAT.

Others

- Support the coordination between the tax operations team and TP consultants for the preparation of TP documentation
- Performed statutory audit of a listed company and took part in annual inventory count of several manufacturing companies

References

Adeeb H. Khan FCA
Senior Partner
Rahman Rahman Huq
9 Mohakhali C/A (11th & 12th)
E-mail:dhaka@kpmg.com
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Ashraf Zaman Ali FCA
Partner
Rahman Rahman Huq
9 Mohakhali C/A (11th & 12th)
E-mail:dhaka@kpmg.com

- Worked as secondment of a large multinational company to deal with the withholding tax and VAT matters (from the calculation of applicable tax to deposit the same to govt. treasury)

Training and Seminars

- Attended couple of times long training on IAS, IFRS and ISA at ICAB auditorium arranged by ICAB.
- Attended 10 days long training on Value Added Tax & Supplementary Duty Act, 2012 at ICMAB auditorium arranged by ICMAB.
- Participated in training courses relating to audit planning, electronic audit, risk assessment, disclosure in financial statements in compliance with Bangladesh Accounting Standards (BAS) and Corporate Income Tax and Value Added Tax conducted by partners and managers of **KPMG-Rahman Rahman Huq, Chartered Accountants.**

Kamruzzaman' s Other Interest

- Committee Member of the various committee's-Bangladesh Taxation, Editorial board, Continuing professional development (CPD), Small & Medium practitioner, Members issues services and welfare (MISW) & media and branding under Institute of Chartered Accountants of Bangladesh.